

## 5.0 Examination Scenarios



# Interoffice memo

**Date** 14/3/2012  
**To** Michael Hart  
**Cc**  
**From** Candidate  
**Subject** Orley Hall – Development Enquiry

Dear Michael,

In response to your memo earlier today with regards to the Orley Hall Development enquiry please find attached 'Report B2-1' as a draft proposal of an action plan for your comments, as requested.

Please note that I have based the report on the following assumptions and observations and realise that it may be a little too over detailed for the Clients eyes at this stage:

- The initial time lines are factored towards maximum time periods in general unless otherwise stated so that if the project is held up slightly, we will not be seen to fall short in the Client's expectations.
- The action plan is a proposed general outline and any special/specific requests that may be made by either the Client or Local Planning Authority will be required to be included at a later stage.

Although, from your introduction of the project, it appears that the Barn itself is not listed, I have noted that in Planning Policy Statement 5: Planning for the Historical Environment, policy HE 10 makes reference to 'Applications for development affecting the setting of a designated heritage asset' and perceived this as a potential factor that as a result may require a 'Listed Building Consent' Application in accordance with the Planning Act 1990. With this in mind I have based the action plan on a sensitive and time consuming design with multiple points of involvement with the Local Planning Authority.

With regards to any additional issues concerning the approval of planning permissions I have noted the following policies within PPS 5 and their reasons of relevance which may be required to be brought up in discussion with the Local Planning Authority:

- HE 5                      This is a request for the L.P.A. to respond to the decay of assets and our proposals could be deemed as a response to this.
- HE 7.5                    This is a request for the L.P.A. to evaluate how an application may make a positive contribution towards historical environment. Our proposal may also be deemed to respond to this policy and add value to the overall area for the use of the public.

Please note that the above and attached information has been based on my knowledge that a Grade 1 Listed Building deems that this building is 'of exceptional interest' and that only about 2% of listed buildings are graded as Grade 1. I would also like to note that while a fee is required for a full planning application, no fee is payable to the L.P.A. for applications for Listed Building Consent.

Should you require any further information on this matter please do not hesitate to ask.

Regards,

Candidate

For your information I have referred to the following publications and notes to aid me with your requests:

- Planning Policy Statement 5: Planning for the Historical Environment
- RIBA Good Practice Guide: Negotiating the Planning Maze



OUR REF: REPORT B2-1  
DATE: 14/3/2012  
REVISION: P1\_RP  
PROJECT: ORLEY HALL - DEVELOPMENT ENQUIRY

**PROPOSED ACTION PLAN (inc. Estimated Timings)**

- 0.0 APPOINTMENT (1 Week)
- 0.1 Confirmation of appointment of services and fees to the Client in writing (inc. informing the Client of their CDM Duties).
- 0.2 Both parties to sign the RIBA Standard Conditions of Appointment for an Architect 2010.
- 1.0 REVIEW OF EXISTING INFORMATION & THE REQUIRED BRIEF (1 Week)
- 1.1 Information to be requested from the Client:
- Knowledge of site history (including the previous history of Barn)
  - Client's brief of requirements
  - Client's Environmental Policy
  - Are there any existing surveys?
  - Where is the funding coming from for this project?
- 1.2 Information to be obtained from existing surveys if possible:
- Geological
  - Ecological (owls/bats/newts etc.)
  - Mining records
  - Contaminated land & pollution records
  - Water tables & flood levels
  - Historical
  - Highways & Footpaths
- 1.3 Request the Client to appoint a Structural Engineer to survey the current stability of existing structure of the Barn before NDG Architects Ltd's survey is to take place

2.0 ARCHITECTS INITIAL SITE APPRAISAL (1 Week)  
(Including Documenting Findings)

- 2.1 To include the following:
- Orientation
  - Existing Surveys
  - Means of Access
  - Topographical & Feature Survey

3.0 INITIAL MEETING WITH THE L.P.A. (1 Hour)  
(Availability of Meeting Unknown)

- 3.1 Brief explanation to the L.P.A. of the Clients requests and requirements
- 3.2 Information to be requested from the L.P.A.
- Identification of the appropriate planning procedure (this is currently assumed to be 'Full Permission' as well as 'Listed Building Consent')
  - Identification of any existing permission granted
  - The extent of the L.P.A.'s own planning/design guidance?
  - Any requirements for 'Planning Gain'?
  - Are there any restrictive covenants known by the L.P.A.?
  - Extent of special circumstances - extent of listing
    - Likelihood of Archaeological remains
    - Environmental / Ecological conditions
  - Any Public Consultation requirements?
  - What requirements are there for environmental assessment?

4.0 REQUIRED ACTION FOLLOWING A MEETING WITH THE L.P.A. WITH  
REGARDS TO THE SITE & CLIENT

(1-2 Weeks)  
To be carried out  
at the same time  
as Section 5.0

(4 Weeks potential for  
confirmation of Results)

- 4.1 Inform the Client of the L.P.A.'s requirements and NDG Architects Ltd's findings following the initial survey.

- 4.2 Request the Client to appoint any relevant and required surveys by additional consultants including:
- Ecological survey: To include documenting all endangered and protected species including owls, bats, newts, badgers etc.
- Historical survey: Including what is original to the Barn and what is an addition.
- 5.0 INITIAL DESIGNS (4 Weeks)  
To be carried out at the same time as Section 4.0
- 5.1 Draw up the schematic designs based on the L.P.A.'s requests and the Client's brief
- 5.2 Review the proposed designs with Client
- 5.3 Edit the designs to meet Client's comments
- 6.0 2<sup>ND</sup> MEETING WITH THE L.P.A. (1 Week)
- 6.1 Review the survey findings with the L.P.A.
- 6.2 Review the initial designs with the L.P.A.
- 6.3 Following the meeting with the L.P.A. edit the designs to suit their comments and report the alterations and comments to the Client
- 7.0 INITIATION OF RIBA STAGE C (2 Weeks)
- 7.1 Request the appointment of the full design team including:
- CDM Coordinator
  - Structural Engineer
  - M&E Engineer
  - Quantity Surveyor
  - Any additional specialists required
- 7.2 Progress with full Design Team the outline proposals



7.3 Request the Client's and L.P.A.'s approval in response to the refined outline proposal

## 8.0 INITIATION OF RIBA STAGE D (2 Weeks)

8.1 Amend the design following the comments from the Client & L.P.A.

## 8.2 Request the Client's approval

8.3 Prepare the required planning application documents (currently assumed to be both a 'full application' and a 'listed building consent' application) with reference to previous meetings with the L.P.A.

## 9.0 SUBMISSION OF PLANNING APPLICATIONS

9.1 Submit all the required planning applications (time assumption – minimum 8 weeks to access the applications)

9.2 No further progress of the project is to take place until planning permission is approved unless the Client requests otherwise.

| TIME LINE SUMMARY OF ACTION POINTS |           |        |        |        |        |        |        |        |        |         |         |         |         |         |         |
|------------------------------------|-----------|--------|--------|--------|--------|--------|--------|--------|--------|---------|---------|---------|---------|---------|---------|
| ACTION POINT                       | TIME LINE |        |        |        |        |        |        |        |        |         |         |         |         |         |         |
|                                    | WEEK 1    | WEEK 2 | WEEK 3 | WEEK 4 | WEEK 5 | WEEK 6 | WEEK 7 | WEEK 8 | WEEK 9 | WEEK 10 | WEEK 11 | WEEK 12 | WEEK 13 | WEEK 14 | WEEK 15 |
| 0.0                                |           |        |        |        |        |        |        |        |        |         |         |         |         |         |         |
| 1.0                                |           |        |        |        |        |        |        |        |        |         |         |         |         |         |         |
| 2.0                                |           |        |        |        |        |        |        |        |        |         |         |         |         |         |         |
| 3.0                                |           |        |        |        |        |        |        |        |        |         |         |         |         |         |         |
| 4.0                                |           |        |        |        |        |        |        |        |        |         |         |         |         |         |         |
| 5.0                                |           |        |        |        |        |        |        |        |        |         |         |         |         |         |         |
| 6.0                                |           |        |        |        |        |        |        |        |        |         |         |         |         |         |         |
| 7.0                                |           |        |        |        |        |        |        |        |        |         |         |         |         |         |         |
| 8.0                                |           |        |        |        |        |        |        |        |        |         |         |         |         |         |         |
| 9.0                                |           |        |        |        |        |        |        |        |        |         |         |         |         |         |         |







# Interoffice memo

**Date** 14/3/2012  
**To** James Noble  
**Cc**  
**From** Candidate  
**Subject** Fee proposal

Dear James,

Further to your earlier Memo with regards to a Performance Car Dealership please see below a potential fee proposal including my assumptions and estimations as well as a list of drawings that may be required. I have also included my concerns and observations with regards to Mr Ball's request.

With regards to the proposed £2m budget I have made the following assumptions and estimations:

- The Budget: £2m (including £400,000 VAT @ 20%)

The calculation of required fee is based on:

- Architects Fees: A Survey of the Fees charged by Private Architectural Practices (2010 edition) by the Fees Bureau:
- An Average fee for a 'new build' 'design & build' procurement with a contract value of between £1m & £2.5m is 4% (for an Archited).

I have made the assumption that an additional 3% of budget is required for additional Consultants' Fees including:

- Structural Engineer
- Mechanical & Electrical Engineer
- CDM Coordinator

I have made an assumption that an additional 1% of budget is required for disbursements including:

- Planning Application
- Building Control Application
- BREEAM Assessor

As a result I have established the **Estimated Construction Cost at £1 472 000**  
(£1.6m – 8%)

From this I have calculated that the **Architect's Fee of 4% is £58 880**

- Based on the RIBA Good Practice Guide: Fee management - The breakdown of this 4% could be proposed as:

Table 3.1: Work stage fees

| RIBA Work Stage                        | Historical   | Alternative        |
|----------------------------------------|--------------|--------------------|
| AB Preparation                         | Time charges |                    |
| C Concept                              | 20%          | 35%                |
| D Design Development                   | 20%          |                    |
| E Technical Design                     | 15%          | 35%                |
| F Production Information               | 20%          |                    |
| G Tender Documentation                 | 2%           |                    |
| H Tender Action                        | 1%           | 30%<br>includes F2 |
| J Mobilisation                         | 1%           |                    |
| K Construction to Practical Completion | 20%          |                    |
| L Post Practical Completion            | 1%           |                    |
|                                        | 100%         | 100%               |

- Due to lack of involvement at Stage K, I propose to reduce it down to 10% and add 5% to both Stages E & F. As there is no need for Stages G & H in this regard I have proposed to add these percentages to Stage C:

C = 23%  
 E = 20%  
 F = 25%  
 K = 10%

As a result I propose that the following fee's are to be issued to the Contractor for discussion. Please note that it may not be suitable to issue to the Contractor the 'Estimated Stage Fee of the 4% Fee' as the exact contract cost is not accurate.

| RIBA STAGE | PROPOSED<br>PERCENTAGE OF 4%<br>FEE AT BUILD COST | ESTIMATED STAGE FEE<br>OF THE 4% FEE BASED<br>ON THE ESTIMATED<br>BUILD COST OF<br>£1,472,000 |
|------------|---------------------------------------------------|-----------------------------------------------------------------------------------------------|
| A-B        | Time Charges                                      | N/A                                                                                           |
| C          | 23%                                               | 13542.40                                                                                      |
| D          | 20%                                               | 11776.00                                                                                      |
| E          | 20%                                               | 11776.00                                                                                      |
| F1+2       | 25%                                               | 14720.00                                                                                      |

Should you have any issues with the above I would be more than happy to discuss them.

With regards to Mr Ball's request, I foresee a conflict of interest by carrying out a service for both apposing parties involved in the same contract. As a result I would propose that we check with our PI insurers as well as both parties that this will be ok.

In accordance with Standard 1 (Honesty & Integrity) of the A.R.B. Code of Conduct, where conflict of interest arises, it is expected of an Architect to disclose in writing the conflict to the satisfactions of all parties.

As a result both parties (Mr Jones & Mr Ball) would have to agree to this arrangement for it to be ethically acceptable by the Architects Registration Board.

I would be surprised if Mr Jones from Roden Construction would accept this proposal based on the two conflicting roles but if so then additional liability would fall upon us if we were to issue such a Practical Completion Statement:

In accordance with JCT Design & Build 2005 Contract Clause 2.27.1:

'When Practical Completion of the Works or a Section is achieved and the contractor has complied sufficiently with clauses 2.37 & 3.18.4 then:

In the case of the Works, the Employer shall forthwith issue a statement to that effect ('the Practical Completion Statement');

And Practical Completion of the Works or the Section shall be deemed for all the purposes of this contract to have taken place on the date stated in that statement.'

As a result we may require more than just monthly site quality checks to ensure the contractor has complied sufficiently with the Contract. Based on this I propose the following fee to Mr Ball for this requested service:

Based on the liability proposed by carrying out the requested services for Mr Ball, I suggest (in accordance with table 3.1 of the RIBA G.P.G: Fee Management) that 20% be proposed of a 5.1 % fee of the overall construction cost (in accordance with A.F.S. 2010). As a result I would propose the following as a suitable fee to Mr Ball:

| RIBA STAGE | PROPOSED<br>PERCENTAGE OF 5.1%<br>FEE (£75,072) OF<br>CONSTRUCTION COST | ESTIMATED FEE OF A<br>5.1% FEE BASED ON<br>ESTIMATED<br>CONSTRUCTION COST<br>OF £1 472 000 |
|------------|-------------------------------------------------------------------------|--------------------------------------------------------------------------------------------|
| K          | 20%                                                                     | £15 014.40                                                                                 |

As requested please see below a breakdown of what I propose to be the required drawings/schedule/specifications/documents for the scheme. Please note that due to my limited knowledge of the scheme that additional information may be required.

### **Required Planning Application drawings:**

#### EXISTING

- Location plan (1:1250 scale inc. site boundary and ownership boundary)
- General Arrangement plans (Ground, 1<sup>st</sup>, 2<sup>nd</sup> etc. including roof plan)
- Elevations (including materials)
- Sections (1:100)
- Site Plan (1:500)

#### PROPOSED

- Site plan (1:500)
- General Arrangement plans (1:100)
- Elevations (inc. materials - 1:100)
- Sections (1:100)
- Design and Access Statement

### **Required Building Regulations Submission drawings:**

#### EXISTING

- Location plan (1/1250)
- G.A. Plans (1/100)
- Elevations (1/100)
- Sections (1/100)
- Site Plan (1/500)
- Fire Strategy Plan (1/100 - if required)

#### PROPOSED

- Window Schedule
- Site Plan (1:500)
- G.A. Plans (1:100)
- Elevations (1:100)
- Sections (1:50)
- Detail Sections (1:5)
- Detail plans (1:5)
- Fire Strategy Plan (1:100)
- Specification of all materials and processes in the form of an NBS
- Demolition plan (if required)

- Internal wall type plan and details
- Reflected ceiling plans
- Sanitary schedule
- Door schedule and Details
- Roof Plans
- Finishes Schedule

(All other consultants drawings)

### **Required Construction drawings:**

#### EXISTING

- Location Plan (1/1250)
- GA Plans (1/100)
- Elevations (1/100)
- Sections (1/100)
- Site Plan (1/500)
- Fire Strategy Plan (1/100 - if required)

#### PROPOSED

- Design Risk Statement
- Site Plan (1:500)
- GA Plans (1:100)
- Elevations (1:100)
- Sections (1:500)
- Detail sections (1:5)
- Detail plans (1:5)
- Fire Strategy Plan (1:100)
- Specification of all materials and processes in the form of an NBS
- Demolition plan (if required)
- Internal wall type plan and details
- Reflected ceiling plans
- Sanitary schedule
- Door schedule and details
- Roof Plans
- External works
- Room Data Sheets
- Internal room elevations and plans
- Contractors site setup
- Setting out drawings
- Finishes schedule
- Fitted furniture details

Please note that general and less detailed construction drawings will be issued at earlier stages as 'Drawing Purpose: Preliminary or Information' to aid with Client approval (the Contractor) and Design Team coordination.

Progress reports at the completion of each RIBA stage may also be additionally required by the Contractor.

I hope this meets your requirements James. Should you require any further information please do not hesitate to ask.

Regards,

Candidate

For your information I have referred to the following publications and notes to aid me with your requests:

- Architects Fees: A Survey of the Fees charged by Private Architectural Practices (2010 edition) by the Fees Bureau
- RIBA Good Practice Guide: fee management
- JCT Design & Build 2005 Contract







# Interoffice memo

**Date** 14/3/2012  
**To** James Noble  
**Cc**  
**From** Candidate  
**Subject** Madchester Academy – New Six Form Block

Dear James,

In response to your earlier Memo with regards to the New Six Form Block at the Madchester Academy please find attached a draft letter and programme to Mr Barber for your comments as requested.

Please note that in addition to this letter I would like to make the following points with regards to how I have reached my conclusions:

- I have noted that due to the New Six Form Block being part of the Education Services it is classed under the Regulations of the Public Procurement Law as 'Part B' and therefore a 'Residual' service.
- I have noted that the current threshold for the procurement of works (in accordance with Public Procurement Law) is £3 927 260.
- I have proposed the invitation to tender to include an OJEU Notice PIN (Prior Information Notice) and to be in electronic format to reduce the required period of tender to 29 days.
- I have included for the required 10 day 'standstill period' in regards to awarding the contract.
- Based on your description that the project is to involve a prestigious building I have proposed a traditional procurement which I expect will be executed under the JCT SBC 05 (Rev 2- 2009)

I trust that this and the attached meet all of your requirements and would be more than happy to discuss my conclusions with you at a convenient time.

Regards,

Candidate



For your information I have referred to the following forms of information to aid me with your requests:

- [www.out-law.com](http://www.out-law.com)
- [www.procurementportal.com](http://www.procurementportal.com)



NDG Architects  
Arthur's Mill  
14 Castle Street  
Manchester  
M13 4AJ

Our Ref: 024/12/03

14<sup>th</sup> March 2012

Mr. A. Barber  
Manchester Academy  
12 School Street  
Manchester  
M12 4XM

Dear Mr Barber,

**RE: MANCHESTER ACADEMY – NEW SIX FORM BLOCK**

Further to your letter dated 12<sup>th</sup> March 2012, I am delighted to hear that the School has secured funding for the new Technology Block.

In response to your enquiries regarding the direct appointment of Jerbill Builders Ltd. I would like to make reference to the requirements of OJEU with regards to Public Sector Funding. Unfortunately, the proposed construction cost of £4.5m requires the project to go out to a competitive tender inline with the OJEU requirements. As a result I would recommend not approaching Jerbill Builders Ltd. Directly so not to compromise the currently secured funding or J.B. Ltd.'s potential during the tender process.

With regards to your concerns relating to appointing an unknown contractor please note that for the purposes of the tender evaluation, an Award Criteria can be set up to evaluate cost against quality and previous performance so to reduce the risk of appointing a Contractor whose past experiences involves poor contract executions.

Based on the prestigious status of this building I would recommend a traditional procurement in line with the following factors:

- Obtaining a cost certainty
- Ensuring a high quality finish
- The flexibility for variations
- Minimal complexity of the scheme

It may be more preferable though that if the factor of time was more important than the required quality of finish, a different procurement strategy may be required. I would be more than happy to discuss this in further detail with you face to face should this be the case.

Please find enclosed an outline programme based on a recommended traditional procurement in line with your requested completion date of the 1<sup>st</sup> September 2013 and the most efficient tender process possible inline with the OJEU requirements. As you will note, in order for this programme to occur, the project will involve working at risk with regards to receiving Planning Permission of which I would strongly not recommend. Any issues that may be brought to light during the planning process (inc. potential refusal) will most likely incur abortive work and cost as well as delaying the project. Please also note that this programme would require our immediate input in order to develop the design in line with the programme. As a result of these issues I would suggest that an expectation of occupancy by 1<sup>st</sup> September 2013 may not be realistic.

I hope this advice is to your satisfaction. I would like to arrange a meeting with you at your convenience to discuss the above issues, including the arrangements of our appointment and the proposed development of the design if possible. Please can you confirm if available to do so?

Yours sincerely,

**James Noble**

For and on behalf of NDG Architects

**E:** mail@ndg-architects.com

**T:** 0161 748 6583

**F:** 0161 748 8493

Encs:            Proposed Outline Project Programme

[illegible]





# Interoffice memo

**Date** 14/3/2012  
**To** Michael Hart  
**Cc** Sarah Jane Key  
**From** Candidate  
**Subject** Assembly and Distribution Depot for Boch UK

Dear Michael,

In response to Sarah's Memo dated 14<sup>th</sup> March 2012 with regards to the Assembly and Distribution Depot for Boch UK, please find attached 3 copies of the same letter (1 copy for the Contractor, 1 copy for the Client and 1 copy for the Quantity Surveyor) requiring your signatures. Please note that these letters are addressed from James and therefore require your signatures as *'per procurationem'*.

Please note that I have made the following assumptions and observations while drafting these letters:

- The contract referred to is the JCT Standard Building Contract with Quantities 2005 Revision 2 (2009)
- While I have not proposed an alternative solution to the Contractor, should a delay be incurred it may be suitable to discuss with the Client (in private) additional options (at this stage) should a delay not be acceptable even though the Contractor will be in a period of culpable delay and will remain liable for the specified damages.

Should you require any further information or would like to discuss the above matters please do not hesitate to ask.

Regards,

Candidate

For your information I have referred to the following publications and notes to aid me with your requests:

- JCT Standard Building Contract with Quantities 2005 Revision 2 (2009)
- RIBA Guide to SBC 05



NDG Architects  
Arthur's Mill  
14 Castle Street  
Manchester  
M13 4AJ

Our Ref: 024/12/04

14<sup>th</sup> March 2012

Wrechin Construction.com  
Civil Engineering & Building Contractors  
5 Built Street  
Manchester  
M2 4NQ

**For the attention of U P Creek**

Dear Sirs,

**RE: ASSEMBLY AND DISTRIBUTION DEPOT FOR BOCH UK**

In response to your letter dated 13<sup>th</sup> March 2012, we would like to point out that your Contractors Design Documents were returned to you marked 'B' by Friday 9<sup>th</sup> March 2012, as confirmed in your letter. In accordance with Schedule 1 Paragraph 2 of the contract, this exchange of information falls within the required 14 day period and as a result we would ask you to please execute the contract accordingly in response to Schedule 1 Paragraph 5.2 and clause 2.9.5.

Please note therefore that any changes to your initially submitted drawings will not constitute as a variation and no 'extension of time' or 'loss and expense' will be awarded to this matter should it delay the contract (in accordance with clause 2.2.2).

I would like to take this opportunity to confirm our previous comments dated 7<sup>th</sup> March 2012 (in accordance with Schedule 1 Paragraph 7) and request that you amend your drawing in accordance with the contract and promptly submit an amended copy to us.

Yours faithfully,

**James Noble**

For and on behalf of NDG Architects

**E:** mail@ndg-architects.com

**T:** 0161 748 6583

**F:** 0161 748 8493

Distribution: U P Creek  
J Smith  
A Jones

Contracts Manager  
Client  
Quantity Surveyor





# Interoffice memo

**Date** 14/3/2012  
**To** James Noble  
**Cc**  
**From** Candidate  
**Subject** A Sorry Tale!

Dear James,

In response to your earlier Memo, with regards to your friend Ron, and his current situation, I would propose as an immediate course of action that a letter be sent to the Architects Registration Board from Ron (draft example attached) acknowledging the complaint and addressing the issues raised in accordance with Standard 10 of the A.R.B. Code of Conduct. Please note that you may deem it suitable to add additional information with regards to specific points that may require further addressing.

I would also propose that it may be preferable if you inform Ron's PI Insurer via his broker that a complaint has been made (draft example attached) as recommended within the RIBA Good Practice Guide: Keeping Out Of Trouble.

Based on the guidance and information issued by the A.R.B. with regards to dealing with a complaint I propose the following will or may have already taken place:

Following the A.R.B. being in receipt of the complaint:

- The Client will be informed of what the A.R.B. are able and not able to do.
- The A.R.B. will address the complaint in detail against the Code of Conduct for unacceptable professional conduct or serious professional incompetence.
- The A.R.B. will issue a copy of any responses made by Ron to the Client for their comment.
- In order for the complaint to be investigated it will be passed on to the A.R.B.'s Investigations committee to consider, that will comprise of one Architect and two non-Architect members.
- If a formal warning is issued it will be confidential but kept on record. If the issues are more serious then the committee will ask the A.R.B.'s Solicitor to write a report for the Professional Conduct Committee. This will lead to a formal hearing of the complaint in public.

It should be noted that the Investigations Committee will always try to come to a decision within 12 weeks of receiving a complaint.

Further to your description of the situation I would propose that the complaint brings into question the following standards as set out in the Code of Conduct & Practice by the A.R.B. with regards to Ron's professional conduct as a registered Architect:

**STANDARD 2 – COMPETENCE**

1. (Others to be competent and adequately supervised)
2. (Appropriate arrangements for absence)

**STANDARD 3 – HONEST PROMOTION OF SERVICES**

4. (All work under the control of an Architect)

**STANDARD 4 – COMPETENT MANAGEMENT OF BUSINESS**

1. (Projects to be regularly monitored and reviewed)
2. (Suitably qualified & supervised staff)

**STANDARD 6 – YOU SHOULD CARRY OUT YOUR PROFESSIONAL WORK FAITHFULLY AND CONSCIENTIOUSLY**

2. (In accordance with time scale and cost)
3. (Inform Client of issues affecting quality and cost)

**STANDARD 9 – MAINTAINING THE REPUTATION OF ARCHITECTS**

2. (Inform A.R.B. within 28 days if you have fallen short of these standards)

**STANDARD 10 – DEAL WITH DISPUTES**

2. (Complaints to be handled courteously)  
Acknowledgment within 10 days of receipt  
Response addressing issues within 30 days

Based on my recent reading of the A.R.B. News Release dated 21/11/2011 – 'Architect reprimanded after finding of serious professional incompetence' regarding Architect Kulbir Chadha of London, I would expect a likely penalty to include a reprimand as the allegations could amount to serious professional incompetence but that there is little prospect of a recurrence of the failings now that the matter is being addressed.

I hope this and the attached meets your requirements and wish all the best to Ron with regards to this matter. I would be more than happy to discuss any of the above information, should you wish to do so.

Regards,

Candidate

For your information I have referred to the following publications and notes to aid me with your requests:

- ARB Code of Conduct and Practice
- ARB Guidance and Information: Dealing with a Compliant
- RIBA Good Practice Guide: Keeping out of trouble
- ARB News Release 21/11/2011

[insert Ron's practice details]

Our Ref: 024/12/05A

14<sup>th</sup> March 2012

A.R.B.  
8 Weymouth Street  
London  
W1W 5BU

For the attention of [insert name from received letter]

Dear Sirs,

**RE: DOMESTIC EXTENSIONS FOR [INSERT CLIENT NAME]**

In response to your letter dated [insert date] please accept this letter as an acknowledgement that a complaint has been received by the A.R.B. with regards to a small domestic extension for [insert Client name] and that I acknowledge that the complaint has been brought against [insert practice name] of which I am the sole owner of.

In response to this complaint I would like to address the issue that due to extenuating circumstances with regards to the health of my Wife, my ability to uphold the Standards as set out within the Code of Conduct and Practice by the Architects Registration Board has been impinged and that I can only apologise for my recent actions.

Please note that due to the continuation of my extenuating circumstances I have only recently received your letter and have requested the services of James Noble of NDG Architects Ltd. to aid me in dealing with this complaint.

Please can you confirm how you wish to proceed with regards to this complaint?

Yours faithfully,

**[insert Ron's name]**

For and on behalf of [insert Ron's Practice]

**[insert Ron's practice details]**

Distribution:

- Architects Registration Board
- J. Noble of NDG Architects Ltd.





NDG Architects  
Arthur's Mill  
14 Castle Street  
Madchester  
M13 4AJ

Our Ref: 024/12/05B

14<sup>th</sup> March 2012

PI Insurers Are Us  
6 Sackville Street  
Madchester  
M12 6FJ

Dear Sirs,

**RE: *[Insert Ron's Practice]***

I have been requested to write to you on behalf of *[insert Ron's full name]* of *[insert Ron's practice]* to inform you that a complaint of professional conduct has been made from *[insert Clients name]* with regards to *[insert project address]* undertaken by *[insert Ron's practice]* to the Architects Registration Board. This complaint was reported to *[insert Ron's Name]* in writing dated *[insert date of letter]* and acknowledgement of the complaint was sent in writing dated 14<sup>th</sup> March 2012.

Please note the following policy number is in accordance with *[insert Ron's practice]* for your information;

Policy Number: *[insert policy number]*

Should you require any further information please do not hesitate to contact me.

Yours faithfully,

**James Noble**

For and on behalf of NDG Architects

**E:** mail@ndg-architects.com

**T:** 0161 748 6583

**F:** 0161 748 8493

Distribution:           - *[Insert Ron's Practice]*  
                              - PI Insurers Are Us



# Interoffice memo

**Date** 15/3/2012  
**To** Michael Hart  
**Cc** James Noble  
**From** Candidate  
**Subject** Salt Works Museum, Southwich

Dear Michael,

Further to James's earlier Memo regarding the collapse of the high brick boundary retaining wall at the Salt Works Museum in Southwich, please find attached a briefing note for the issues that this event raises.

Please note though, as an immediate course of action I would recommend that we notify the following parties with regards to this matter:

- The Client
- The CDM Coordinator
- The Structural Engineer

While we currently do not expect to receive a claim against us at this stage with regards to this issue, you may deem it suitable to contact our Personal Indemnity Insurers via our Broker as well (in reference to clause 2.18.3 of the contract).

For the purpose of this exercise I have referred to the JCT Standard Building Contract 2005 with Approximate Quantities Revision 2 (2009).

When you attend site later today Michael, it may be suitable to remind the Contractor that (in accordance with clause 2.18 of the contract) if this issue constitutes as an emergency requiring immediate compliance with regards to statutory requirements, the Contractor is to carry out the necessary works before receipt of an instruction. Analysis of liability can then take place at a later stage. It also may be suitable to remind him that (in accordance with clause 3.23.2.2 of the contract) as the Principle Contractor, it is their duty to provide welfare facilities complying with Schedule 2 of the CDM Regulations now that a portaloo has been destroyed.

Should you require any further information please do not hesitate to ask.

Regards,

Candidate

For your information I have referred to the following publications and notes to aid me with your requests:

- JCT Standard Building Contract 2005 with Approximate Quantities Revision 2



**OUR REF: REPORT B2-2**  
**DATE: 15/3/2012**  
**REVISION: P1\_RP**  
**PROJECT: SALT WORKS MUSEUM, SOUTHWICH**

**LIABILITY AND RESPONSIBILITIES UNDER THE JCT STANDARD BUILDING  
CONTRACT 2005 WITH APPROXIMATE QUANTITIES REVISION2 (2009) WITH  
REGARDS TO A COLLAPSE OF A HIGH BRICK BOUNDARY RETAINING WALL AT  
THE SALT WORKS MUSEUM IN SOUTHWICH ON 15<sup>TH</sup> MARCH 2012**

**ANALYSIS OF LIABILITY**

With regards to liabilities and responsibilities the first point of call is to determine how and why a section of the high brick boundary wall has collapsed. I propose that is to be due to one of the following issues:

- Natural decay independent to execution of works
- A direct result of the execution of works  
(inc. excessive vibrations etc)
- A direct result of the negligence of the Contractor  
(inc. site materials being stored up against the wall)
- Workmanship not in accordance with the contract  
(if the boundary wall is a proposed element within  
the scope of the works. I assume this is not the  
case but if so I would refer to clause 3.19 of the  
contract.)

As we are acting as Contract Administrator and therefore an impartial party to the contract I would propose that we put together a report documenting our findings following our site inspection later today to summarise our analyses of liability with regards to the above issues. I would also recommend that we request both the CDM Coordinator and Structural Engineer to have their input with regards to drafting this report.

If it is proposed that the boundary wall is an existing element that has collapsed due to the natural decay independent to the execution of the works, then (in accordance with clause 6.8) the Employer's Insurance via a Joint Names Policy for All Risks will cover the reasonable cost of the removal and disposal of debris and of any shoring and propping of the Works which results from the collapse. This cover will not include the cost necessary to repair, replace or rectify the damaged wall and if requested by the Client to do so, an Architects Instruction will be required and it will be deemed as a Variation to



the contract. Due to it being a boundary wall though, this may require a Party Wall Surveyor to analyse where the appropriate funding is to come from between the adjacent neighbours.

If it is proposed that the collapse of the wall is a direct result of either the execution of works and/or further negligence of the Contractor then in response to Section 6 of the contract, the Contractor will be deemed liable (in accordance with Clause 6.2 of the contract). As a result, the Contractor shall be liable for and shall indemnify the Client against any expense to any damage to property unless the property is required to be insured thereunder caused by Specified Perils. This does not include site materials but (in accordance with clause 2.24 of the contract), regardless of whether the Client has paid for the materials within an Interim Certificate, the Contractor shall remain liable for their loss or damage.



# Interoffice memo

**Date** 15/3/2012  
**To** Sue Allen  
**Cc**  
**From** Candidate  
**Subject** Employment Rights

Dear Sue,

In response to your earlier Memo with regards to Employment Rights, I am sorry to hear about your friend at OMG Architects Ltd.

Please see below my response to your requests including a breakdown of the administration process and the potential outcomes that may occur from your friend. Please note that due to your request for a brief Memo I have not gone into too much detail. Should you require any further information please do not hesitate to ask.

In order to determine how debt can be recovered it is vital to understand the rights of an Employee.

These rights include (in accordance with the Employment Rights Act 1996):

- Contractual rights
- Right not to be subject to unlawful discrimination
- Reasonable adjustments for disabled employees
- Family – friendly rights
- Right not to be unfairly dismissed

Unfair dismissal as governed by the Employment Rights Act 1996 only relates to qualifying employees (minimum 12 months continuous service). A dismissal must relate to being fair in all the circumstances in relation to the A.C.A.S. Code of Practice within the range of reasonable responses.

Under the E.R.A. 1996, redundancy (including liquidation) is specifically noted as a potentially fair reason for dismissal. In common law, two of the main situations in which redundancy arises is either where the Employer closes down altogether or where the need for Employees to do a particular kind of work has ceased or diminished.

‘Administration’ or ‘gone into Administration’ is a legal concept that involves a procedure under common law to act as a rescue mechanism for insolvent entities allowing them to maintain the running of a business. During this procedure the company is controlled by the Administrator acting as the interim Chief Executive until a conclusion of the business’s future is determined.

These futures can include:

- Recapitalising the business
- Selling the business
- Splitting the business into reduced elements to be either sold or closed down.

This procedure is governed by the Insolvency Act 1986 as amended by the Enterprise Act 2002. As part of the duties of the Administrator, a Debt Restructuring Plan is required to be carried out which is to include all monies owed including to current or previous employees. If it is deemed that not all these debts can be recovered then the company assets will be sold off to recover as much as possible and the rest of the company will be closed down and no further debt will be able to be recovered.

Where this occurs, (In accordance with Chapter 6 of the E.R.A. 1996) an employee is eligible to apply for the payments by the Secretary Of State.

Further advice on this matter including assistance on recovering debt can be found from multiple professional bodies including the Association of Business Recovery Professionals and the Insolvency Practitioners Association. Another good source of information with regards to specific matters would include appointing the services of a Solicitor that specialises in Employment Law (including Helen Owen of Hill Dickinson).

Through an Administrator, if the company was bought by a separate investor it is common for the employees within that company to be included within the new ownership. As a result, future salary payments would progress within this new ownership. The cost of purchasing that company would be divided in accordance with the Debt Restructuring Plan and a percentage may be recoverable to the employees from previous salary payments owed. Any outstanding debt may or may not be recovered via applying for payments by the Secretary of State.



Ethically the Directors of the practice along with the Courts are to approve the debt restructure plan. As a result, the directors may morally support the repayments of debt owed to their supportive employees in favor of other outstanding debt including general office overheads.

Regards,

Candidate

For your information I have referred to the following publications and notes to aid me with your requests:

- Introduction to employment law lecture (12/7/2011)  
By Helen Owen on behalf of Hill Dickinson
- Architects Legal handbook, the law for Architects edited by Anthony Speaight (Ninth edition)



# Interoffice memo

**Date** 15/03/2012  
**To** Michael Hart  
**Cc** James Noble  
**From** Candidate  
**Subject** Office Development for Johnson Holdings

Dear Michael,

In response to James's earlier Memo with regards to the revised completion date from Johnson Holdings' Office Development, please find attached the relevant letter and certificates, as requested.

With regards to John Parker I have deliberately decided to take a neutral response so not to aggravate the situation any more under the presumption of potential future work.

Please note that I have made the following assumptions while preparing the attached documents.

- I have referred to the JCT standard Building Contract 2005 with Quantities Revision 2 (2009)
- I have proposed that the RIBA Standard Conditions of Appointment for an Architect 2010, including the Schedules, has been agreed and signed by Johnson Holdings.

Should you require any further information please do not hesitate to ask.

Regards,

Candidate

For your information I have referred to the following publications and notes to aid me with your requests:

- JCT SBC 2005 with Quantities Revision 2 (2009)
- RIBA Standard Conditions of Appointment for an Architect 2010
- RIBA Schedules 2010



NDG Architects  
Arthur's Mill  
14 Castle Street  
Madchester  
M13 4AJ

Our Ref: 024/12/08

15<sup>th</sup> March 2012

Johnson Holding PLC  
PO Box 16, Company House  
Capital Square  
Madchester, M7 5JJ

Dear Mr Parker

**RE: OFFICE DEVELOPMENT, TRAFFORD VALLEY, MADCHESTER**

Further to your letter dated 13<sup>th</sup> March 2012 we would like to refer you to the jointly signed RIBA Standard Conditions of Appointment 2010 Schedules and in particular the Role Specification for Contract Administration within Part 1 (of which NDG Architects Ltd. is specified as, within the Articles of Agreement - SBC/Q). As the contract administrator one of our roles is to exercise impartial and independent judgment when dealing between Client and Contractor. In accordance with this requirement and as stated in our previous correspondence we have revised the contractual date of completion to 27<sup>th</sup> January 2012.

Please note that (in accordance with clause 2.32.3) any amounts withheld previous to this two week 'extension of time' is required to be paid to the contractor proportional to the revised completion date.

Should you require any further information with regards to this matter I would be more than happy to arrange a meeting with you at your convenience.

Yours sincerely

**Michael Hart**

For and on behalf of NDG Architects

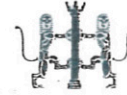
**E:** mail@ndg-architects.com

**T:** 0161 748 6583

**F:** 0161 748 8493

Encs:               - Notification of Revision to Completion Date 04  
                      - Non-Completion Certificate 02

Distribution:   - Mr J Parker                   Agent for Johnson Holdings  
                  - Mr A Smith               Quantity Surveyor



**SBC**

Issued by: NDG Architects  
address: Arthur's Mill  
14 Castle Street  
Manchester  
M13 4AJ  
Employer: Johnson Holdings  
address: PO Box 16, Company House  
Capital Square  
Manchester UK

Contractor: Jigsaw Construction Ltd  
address: Merriman Industrial Estate  
Rancorn  
Cheshire

Works: Office Development  
situated at: Trafford Valley  
Manchester

Job reference: C 107/10

Notification no: 04

Issue date: 15:03:2012

Contract dated: 30th March 2010

Under the terms of the above-mentioned Contract, this is notification that the  
Completion Date for

\*Delete as  
appropriate

\* the Works

\* ~~Section no.~~ \_\_\_\_\_ of the Works

previously fixed as

13<sup>th</sup> JANUARY 20 12

\* is hereby fixed later than that previously fixed,

~~\* is hereby fixed earlier than that previously fixed,~~

~~\* is hereby confirmed,~~

and is now

27<sup>th</sup> JANUARY 20 12

~~\* The extension of time attributed to each Relevant Event is as follows:—~~

~~\* The reduction in time attributed to each Relevant Omission is as follows:—~~

\* This decision is made by reason of my/our review.

In accordance with 2.28.3.5.1 & 2.29.1 An additional 2 weeks are to  
be attributed to the additional works to contract detailed in AI no 32

To be signed by or for  
the issuer named  
above

Signed NDG ARCHITECTS

Distribution



Contractor



Quantity Surveyor



M&E Consultant



Planning Supervisor



Employer



Structural Engineer



Clerk of Works



File



# Non-Completion Certificate

**SBC/IC/ICD**

Issued by: NDG Architects  
address: Arthur's Mill  
14 Castle Street  
Manchester  
M13 4AJ  
Employer: Johnson Holdings  
address: PO Box 16, Company House  
Capital Square  
Manchester UK

Contractor: Jigsaw Construction Ltd  
address: Merriman Industrial Estate  
Rancorn  
Cheshire

Works: Office Development  
situated at: Trafford Valley  
Manchester

Job reference: C107/10

Certificate no: 02

Issue date: 15/03/2012

Contract dated: 30th March 2010

Under the terms of the above-mentioned Contract,

~~/~~ We hereby certify that the Contractor has failed to complete

\*Delete as appropriate

\* the Works

\* Section no. \_\_\_\_\_ of the Works \_\_\_\_\_

by the relevant Completion Date, namely

27<sup>th</sup> JANUARY 20 12

To be signed by or for the issuer named above

Signed NDG ARCHITECTS

Distribution

|                                                       |                                                         |                                                         |                                          |
|-------------------------------------------------------|---------------------------------------------------------|---------------------------------------------------------|------------------------------------------|
| <input checked="" type="checkbox"/> Employer          | <input checked="" type="checkbox"/> Structural Engineer | <input checked="" type="checkbox"/> Planning Supervisor | <input type="checkbox"/>                 |
| <input checked="" type="checkbox"/> Contractor        | <input checked="" type="checkbox"/> M&E Consultant      | <input type="checkbox"/>                                | <input type="checkbox"/>                 |
| <input checked="" type="checkbox"/> Quantity Surveyor | <input type="checkbox"/> Clerk of Works                 | <input type="checkbox"/>                                | <input checked="" type="checkbox"/> File |







# Interoffice memo

**Date** 15/03/2012  
**To** Michael Hart  
**Cc**  
**From** Candidate  
**Subject** Continuing Professional  
Development

Dear Michael,

In response to your earlier Memo with regards to Continuing Professional Development please see below a succinct summary of the current RIBA CPD requirements and my ideas to potentially improve on our current approach to practice's Continuing Professional Development.

The RIBA revised their CPD requirements with the launch of a new CPD Core Curriculum in September 2011. The structure has been simplified following requests by members and has changed in line with the revised RIBA/ARB Joint Validation Criteria for Parts 1, 2 and 3.

The syllabus of core curriculum now includes the following topics which are defined in further detail by the RIBA:

- Health & Safety
- Professional Context
- Practice Management
- Managing Projects
- Construction Skills
- Personal Skills & Development

The current CPD requirements as requested by the RIBA for a Chartered Architect per year must include the following:

- 35 Hours of CPD; along with:
- 100 points which is given to activities where self-reflection is used.

- At least half of the CPD activity, where possible, is to be structured.
- At least 20 hours of CPD on core curriculum topics (at least two hours on each topic each year).
- A record of the CPD activities online using the RIBA CPD recording manager.

In advance of next week's office meeting, I have prepared a draft outline CPD Management frame work for discussion:

- 1.0 NDG Architects are to maintain an internal assigned CPD manager.
  - 1.1 This assigned manager is to ensure their own continuing training is up to date for this role and to review progress on an annual basis with the Company's Quality Manager (Currently: S. Allen).
- 2.0 It is the CPD Managers role to identify the appropriate staff for CPD requirements.
  - 2.1 The CPD manager is to identify all internal staff that are to meet essential CPD requirements on a yearly basis.
  - 2.2 The CPD Manager is to identify all internal staff to which it is not essential but would benefit from the CPD requirements on a yearly basis.
- 3.0 It is the CPD Managers role to organize and maintain the internal structure for carrying out CPD activities in accordance with the most current RIBA requirements.
  - 3.1 The CPD Manager is to create a structured approach to CPD activities within the office to match a minimum of 20 hours of CPD activity per person covering the core curriculum tasks (this section is to be reviewed when the CPD requirements of ARB & RIBA are next revised).
- 4.0 The CPD Manager is to conduct a yearly review process per identified persons to analyse their progress of the CPD requirements and maintain records of such reviews.
- 5.0 The CPD Manager is to adhere to the most current CPD requirements as set out by the ARB & The RIBA (the RIBA is preferred due to a more detailed breakdown of the requirements).

As set out within Section 3.0 of the above framework please see below a series of my ideas that may be included within the internal structure:

- Potential CPD activities may be carried out within the office on a Friday afternoon on a fortnightly basis. This may improve the interest of internal staff to which the CPD requirements are not essential.
- It may be beneficial to arrange combined CPD activities with another Architects practice located near by to improve on the exchange of information and ideas.
- To aid with the continuing level of interest it may be suitable to advertise on our own website requesting for other professionals to introduce their specialties to us in the form of a CPD activity.

With regards to becoming a 'learning practice' it may be preferable to continuously rearrange the resourcing of staff so that every technical employee gets the opportunity to work with every other technical employee on a regular basis. This will aid the unity of Quality Assurance to the output of work from NDG Architects as well as continually ensuring the workforce has a diverse set of skills and knowledge.

I hope the above is in agreement with what you have requested. Should you require any further information please do not hesitate to ask.

Regards,

Candidate

For your information I have referred to the following publications and notes to aid me with your requests:

- [www.architecture.com](http://www.architecture.com)



# Interoffice memo

**Date** 15/03/2012  
**To** James Noble  
**Cc**  
**From** Candidate  
**Subject** Future Magazine Article for 'A' Magazine

Dear James

In response to your earlier Memo with regards to the Future Magazine Article for 'A' Magazine, please see below an outline frame work in accordance with your 500 words limit. I would very much like the opportunity to be an active part of this article and feel there is much more that I can contribute to this matter.

Please feel free to ask should you require any further information at this stage.

## 0.0 Title for the Article

- 0.1 An intriguing title is required to capture the attention of the reader. I propose the following as a possible option:

True or **False**: The Failings of Architecture as a Profession

## 1.0 Introduction to the Article

- 1.1 An explanation into the purpose of this article is required. I propose something similar to the following as a good starting point:

Currently Architects are continually coming under attack by other professionals within the Construction Industry for failing to perform the same duties that were previously perceived to be carried out in the past. I would like to take this opportunity to introduce some of the challenges that the current Architect faces while trying to meet the needs of a new client and how the profession today is evolving to engage successfully with this modernised Industry.

## 2.0 Current challenges that a modern Architect faces

- 2.1 I feel it would be suitable to remind the reader of recent issues and risk that an Architect faces as a result of the current recession and would propose something similar to the following:

Due to the current recession Architects across the world are continually under cutting each other with regards to bidding for work. As a result, at present the Market now expects the same service that was carried out in 2007 but for half the price. As issues with liability and responsibility are continuing to escalate the Profession as a whole is currently on a knife edge with regards to success.

## 3.0 Blue Skies on the Horizon

- 3.1 I believe that an introduction of the modern tools available to an Architect should be expressed at this stage along the following lines of:

As a result of these tight constraints, Architects have been forced to adapt to their environment and have efficiently and effectively devised multiple ways in which a design team can produce the required information within the required time frames to the required budget. This adaptation has occurred within the abilities and tools of communication.

- 3.2 An explanation of Building Information Modelling and the evolution of Building SMART:

BIM is an electronic tool that allows multiple design consultants to cross reference their design information in a reduced time scale to minimise abortive work and reduce issues during works being carried out on site. It can also be used directly with the Contractor to improve on communication skills and reduce the opportunity for errors.

- 3.3 An introduction of modern procurement methods including in the form of the NEC3 contracts:

As a refinement to the conventionally assessed contract choice on the basis of Time, Cost & Quality, the NEC3 has fulfilled the requirement for a contract to respond to the individual issues relating to any project in a finely calibrated manner and as a result has received important endorsements from both the Latham and Egan Reports as carried out by the UK Government.

## 4.0 Conclusion

- 4.1 I feel a summary of the modern advances should not solely act as a replacement for the more traditional processes as without the right checks in place or the due diligence not to just recreate what was last produced the Art Form of Architecture may become lost (even if only from a commercial point of view).

For your information I have referred to the following publications and notes to aid me with your requests:

- RIBA – Which Contract? (Fourth Edition)
- RIBA – An Architects Guide to NEC3